

1/11

□

File No.: EXP202303344

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On July 17, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against HSSERVICE LIZCON SOLUTIONS, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No.: EXP202303344 (PS/00295/2023)

### AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

### BACKGROUND

FIRST: On 08/02/23, Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity HSSERVICE LIZCON SOLUTIONS, S.L. with CIF: B87438198 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data.

The complaint concerns the lack of information provided by the respondent regarding the processing of the complainant's personal data when she took a TV to the entity's technical service for repair and her personal data was collected in the "Work Sheet." It also indicates that there is no information regarding the processing of personal data on the entity's website <https://hsservice.es/>.

Along with the complaint, a copy of the "Work Sheet" is attached, where it can be verified that there is no reference to the processing of the personal data collected in the "Work Sheet" form.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

2/11

SECOND: On 14/03/22, in accordance with the provisions of Article 65.4 of the LOPDGDD Law, the complaint was forwarded to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

THIRD: On 13/04/23, the respondent sent a written response to this Agency regarding the request made, in which, among other things, it states regarding the processing of the complainant's personal data that the defects found in the delivered TV set, "(...) are written in the work sheet and the client accepts that the TV is delivered in these conditions (signs the work sheet and does not sign the data protection annex (...))."

A copy of the "Work Sheet" signed by the complainant and a copy of a document titled "Privacy Policy and Sales Conditions" are attached to the written response.

This document consists of four pages detailing the identity and contact information of the responsible party; the purposes of the processing to which the personal data are destined or the rights of the client regarding the processing of their personal data, but there is no field where the client can indicate that they have read and accepted this information. There is also no indication anywhere, through their signature or acceptance, that the complainant was informed of these aspects.

FOURTH: On 08/05/23, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint presented, in accordance with Article 65 of the LPDGDD Law, upon appreciating possible rational indications of a violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

FIFTH: On 08/07/23, this Agency accessed the website <https://hsservice.es/> and verified the following characteristics regarding its "Privacy Policy":

a) Regarding the processing of personal data:

It is verified that personal data such as name, email, or subject can be obtained through the <> link in the "Service Request" form.

Personal data of clients can also be obtained through the "COMPUTER REPAIR REQUEST" form, located on the main page of the website. This form must include data such as ID number, Name and Surname; Phone or Email.

b) Regarding the "Privacy Policy":

There is no information regarding the processing of personal data that is developed on the website.

There is also no link to the "Privacy Policy" or "Legal Notice" on the website.

## LEGAL GROUNDS

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

3/11

I.-

Competence:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, by virtue of the powers recognized to each Control Authority by Article 58.2 of the GDPR and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD Law.

II.-1

On the lack of information regarding the processing of personal data when the client signs the "Work Report"

The complainant indicates in her complaint that when she signed the "work report" which included her personal data, she was not informed at any time about the processing of the personal data obtained from her.

For its part, the entity being complained about states that the client signed the work report but did not sign the data protection annex and attaches a copy of a document titled "Privacy Policy and Sales Conditions" where the identity and contact details of the data controller are detailed; the purposes of the processing to which the personal data is destined, or the rights of the client regarding the processing of her personal data, but there is no field where the client can indicate that she has read and accepted this information. There is also no record anywhere, through her signature or acceptance, that the complainant was informed of these aspects.

II.-2

On the lack of information regarding the processing of personal data on the website

<https://hsservice.es/>

In the verification carried out by this Agency of the website in question, it has been detected that personal data of clients or users can be obtained from it, but there is no information anywhere about the processing that will be carried out on the personal data obtained. There is also no link redirecting the user to the "Privacy Policy" or "Legal Notice" of the website.

III.

Possible administrative infringement

Recital 61 of the GDPR states that:

"Information on the processing of their personal data should be provided to the data subjects at the time it is obtained from them or, if obtained from another source, within a reasonable period, depending on the circumstances of the case. If the personal data can be legitimately communicated to another recipient, the data subject must be informed at the time when the data is communicated to the recipient for the first time. The data controller intending to process the data for a purpose other than

that for which it was collected must provide the data subject, prior to such further processing, information about that other purpose and any other necessary information."

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
4/11

of personal data cannot be provided to the data subject due to the use of multiple sources, general information must be provided.

For its part, Article 13 of the GDPR details the information that must be provided to the data subject when the data is collected directly from them, establishing the following:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide, at the time of obtaining the data: a) the identity and contact details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party; e) the recipients or categories of recipients of the personal data, where applicable; f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability; c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data; f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject."

Therefore, the lack of information in accordance with current regulations regarding the processing of personal data when obtained from users accessing the technical service of the entity being claimed and their personal data being collected in the "Worksheet" could imply a violation of Article 13 of the GDPR.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
5/11

On the other hand, the lack of information in accordance with current regulations regarding the processing of personal data when obtained from users accessing the website owned by <https://hsservice.es/> may also constitute a violation of Article 13 of the GDPR.

IV.-1

Proposal and assessment of the sanction regarding the lack of information on data protection in the "Work Sheet."

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an

amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5.b) of the GDPR.

In this regard, Article 72.1.h) of the LOPDGDD considers very serious, for the purposes of prescription, "the omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of the GDPR."

The balance of the circumstances considered, regarding the infringement committed, by violating what is established in Article 13 of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

#### IV.-2

##### Possible Measures to Require

Sections d) and i) of Article 58.2 of the GDPR provide as follows:

"Each supervisory authority shall have all of the following corrective powers indicated below: (...) "d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;" "i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;"

In this case, the administrative fine sanctioning procedure is invoked, given the category of the data collected and the risks to the rights and freedoms that are compromised as a result.

The imposition of adjustment measures in the processing is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Therefore, if the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...", as provided in Article 83.2 of the GDPR.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

6/11

In such a case, in the resolution that is adopted, this Agency may require the controller to, within the determined period, adapt the processing operations they carry out to the personal data protection regulations and the procedure by which they obtain consent for the collection and processing of personal data; all of this within the scope expressed in the Legal Grounds of this agreement and without prejudice to what results from the instruction.

It is warned that failure to comply with the requirements of this body may be considered a serious administrative infringement for "failing to cooperate with the Supervisory Authority" in response to the requests made, and such conduct may be assessed at the time of opening an administrative sanctioning procedure with a monetary fine.

#### V.-1

Proposal and assessment of the sanction regarding the lack of information on data protection on the website

<https://hsservice.es/>.

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5.b) of the GDPR.

In this regard, Article 72.1.h) of the LOPDGDD considers very serious, for the purposes of prescription, "the omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of the GDPR."

The balance of the circumstances considered, regarding the infringement committed, by violating what is established in Article 13 of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

#### V.-2

## Possible Measures to Require

Sections d) and i) of Article 58.2 of the GDPR provide as follows:

"Each supervisory authority shall have all of the following corrective powers indicated below: (...) "d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;" "i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;"

In this case, the administrative fine sanctioning procedure is invoked, given the category of the data collected and the risks to the rights and freedoms that are compromised as a result.

The imposition of adjustment measures in the processing is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

7/11

Therefore, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..." as provided in Article 83.2 of the GDPR.

In such a case, in the resolution that is adopted, this Agency may require the responsible party to, within the determined timeframe, adapt the processing operations they carry out and the procedure by which they obtain consent for the collection and processing of personal data to the data protection regulations; all of this within the scope expressed in the Legal Foundations of this agreement and without prejudice to what results from the instruction.

It is warned that failure to comply with the requirements of this body may be considered a serious administrative infringement for "not cooperating with the Supervisory Authority" in response to the requests made, and such conduct may be evaluated at the time of opening an administrative sanctioning procedure with a monetary fine.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against the entity HSSERVICE LIZCON SOLUTIONS, S.L. with CIF: B87438198 for:

- infringement of Article 13 of the GDPR, for the lack of information regarding the processing of personal data in the "Work Sheet."

- infringement of Article 13 of the GDPR, for the lack of information regarding the processing of personal data on its owned website <https://hsservice.es/>,

TO APPOINT: as Instructor Mr. B.B.B., and Secretary, if applicable, Ms. C.C.C., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

TO INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

8/11

- 2,000 euros (two thousand euros), for the infringement of Article 13 of the GDPR, regarding the lack of information about the processing of personal data in the "Work Sheet," without prejudice to what results from the instruction of this file.

- 2,000 euros (two thousand euros), for the infringement of Article 13 of the GDPR, regarding the lack of information about the processing of personal data on its owned website, without prejudice to what results from the instruction of this file.

The total sanction that may correspond would be 4,000 euros (four thousand euros).

TO NOTIFY: this agreement to initiate the sanctioning file to the entity HSSERVICE LIZCON SOLUTIONS, S.L., granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure, equivalent in this case to 800 euros. With the application of this reduction, the sanction would be set at 3,200 euros, resolving the procedure with the imposition of this sanction. Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 800 euros. With the application of this reduction, the sanction would be set at 3,200 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 2,400 euros (two thousand four hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
9/11

If you choose to proceed with the voluntary payment of any of the amounts indicated above, you must make the payment by depositing it into account No. ES00 0000 0000 0000 0000 000000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled. You must also send the proof of payment to the General Subdirector of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí  
Director of the Spanish Agency for Data Protection.

>>

SECOND: On August 11, 2023, the respondent has proceeded to pay the fine in the amount of 2400 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement,

which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

## LEGAL GROUNDS

I

Competence

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

10/11

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303344, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER HSSERVICE LIZCON SOLUTIONS, S.L. to notify the Agency within one month

of the adoption of the measures described.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)

11/11

in the legal grounds of the Agreement of initiation transcribed in the present resolution.

THIRD: NOTIFY this resolution to HSSERVICE LIZCON SOLUTIONS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-121222

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)